SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

06/26/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant*.	No. APP-24-8800 Superior Court No. 22014337

APPLICATION FOR STAY OF EXECUTION OF CUSTODY CONDITION, FINES AND FEES AND FOR BAIL PENDING APPEAL

Interim relief is requested before the scheduled SWAP surrender date on July 1, 2024

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Attorneys for Petitioner

To the Honorable Eric R. Fleming, Presiding Judge:[1]

Pursuant to rule 8.854(a) of the California Rules of Court, Defendant Andrew Enriquez respectfully applies for a stay of execution of the probation condition requiring him to serve ten days in custody through the Sheriff's Work Alternative Program and pay $610 in fines and fees, and in the alternative, applies for bail pending appeal. Pursuant to rule 8.854(d) of the California Rules of Court, Enriquez further applies for interim relief staying the custody condition pending the Court's ruling on this application, and requests that this interim relief be ordered before the scheduled SWAP surrender date of July 1, 2024.

This application is brought for two independent reasons.

First, Enriquez has an absolute statutory right to bail pending appeal in this misdemeanor DUI case. (Pen. Code, § 1272, subd. (b); *In re O'Driscoll* (1987) 191 Cal.App.3d 1356, 1359–1360.) The trial court erroneously denied his request for bail. Without a stay, this error will become irremediable, since his sentence will already have been served even if the judgment is reversed.

Second, Enriquez's case involves a claim that the trial court denied him his statutory right to a speedy trial. In four cases raising a materially identical claim, the Court of Appeal has issued stays and *Palma* notices, and the District Attorney has confessed error. This Court has also granted stays in more than fifty writ petitions arising from similar claims. Enriquez's custodial sentence, fines and fees should likewise be stayed pending the Court of Appeal's decision.

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[1] Unless the Court determines otherwise, the Presiding Judge may rule on this application. (See Cal. Rules of Court, rule 8.806(d); Local Rules of Court, rule 21.4.)

In a misdemeanor case, a speedy trial claim is cognizable on appeal, as the District Attorney has elsewhere conceded. It was not possible for Enriquez to file a writ petition because the trial court delayed ruling on his motion for months, only issuing a denial on the very day that the trial was assigned. That delay should not result in Enriquez's being forced to serve a custodial sentence and pay fines which the Court of Appeal may soon hold should never have been imposed.

STATEMENT OF FACTS

Enriquez was charged in a misdemeanor complaint with driving under the influence of alcohol and driving with a blood alcohol content of 0.08% or more. He asserted his statutory right to a speedy trial on June 14, 2023, and the trial court set July 14 as the last day for trial. (AE 4.) On July 14, 2023, the trial court found good cause to continue the jury trial to October 16, 2023, issuing its usual "good cause" order. (AE 6.) On October 16, 2023, the trial court continued the jury trial to December 1, 2023; the court minutes are missing, and the reason for the continuance is not known. On December 1, 2023, the trial court further continued the trial to March 5, 2024, relying on the good cause order. (AE 8.)

In February 2024, Enriquez filed a motion to dismiss on speedy trial grounds, incorporating the entire evidentiary record assembled by the Public Defender's Office, and later filed a supplemental motion. (AE 9, 29.) The trial court did not deny the motions until April 3, 2024. On the same day, it assigned the trial to Hon. Braden Woods in department 502. (AE 48.)[2]

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[2] The court orally denied the motions, but the denial was not recorded in the minutes. A transcript has been ordered and will be supplied to this Court when available.

After a jury trial, Enriquez was convicted on all counts. He filed a motion to stay sentencing, to be admitted to bail pending appeal, and for a stay of the remaining probation conditions. (AE 49.) The trial court denied the motion, relying on a depublished case that it mistakenly believed was still citable, and the rule that courts may not "stay or suspend pronouncement of sentencing" in a DUI case. (AE 72:11–73:22; Veh. Code, § 23600, subd. (a).) It sentenced Enriquez to three years' probation, including a ten-day jail condition, servable through the Sheriff's Work Alternative Program, and $610 in fines and fees. (AE 90–91.) The SWAP surrender date is July 1, 2024.

Enriquez promptly ordered the transcript of the sentencing sentencing, but the transcription service did not respond until June 13, 2024, and did not produce the transcript until today's date after his counsel pointed out an invoicing error. Enriquez then immediately prepared this application.[3]

ARGUMENT

I. This Court should stay the custody condition because Enriquez was deprived of his statutory right to bail pending appeal

Penal Code section 1272 provides that bail pending appeal is "a matter of right . . . when the appeal is from a judgment imposing imprisonment in cases of misdemeanors." (Pen. Code, § 1272, subd. (b).) This statute "guarantees a right to bail on appeal from any appealable order or judgment imposing imprisonment on a misdemeanor offense," including an order granting probation with a custody condition. (*In re O'Driscoll* (1987) 191 Cal.App.3d 1356, 1359–1360.) Our Supreme Court has held that this right is "absolute" and "extends to the pendency of an appeal," and that

[3] Undersigned counsel obtained the permission of Steve Lau, Enriquez's appellate counsel, to file this application.

misdemeanor defendants have a constitutional right to a bail setting in a reasonable amount to safeguard their liberty while the appeal is decided. (*Ex parte Newbern* (1961) 55 Cal.2d 500, 503–504.)

Enriquez requested bail pending appeal under Penal Code section 1272. (AE 52–53.) The trial court refused to set bail, relying on a provision of the Vehicle Code that bars courts from "stay[ing] or suspend[ing] pronouncement of sentencing" in a DUI case. (Veh. Code, § 23600, subd. (a).) That was wrong. Vehicle Code section 23600 does not affect Enriquez's right to bail, since a bail setting does not involve staying or suspending the pronouncement of sentence. Rather, bail is set *after* a defendant is sentenced. (*O'Driscoll*, *supra*, 191 Cal.App.3d at p. 1360 ["It is self evident that *the need for bail does not arise until imprisonment is ordered.*"].) And the same chapter of the Vehicle Code contemplates that a court may "suspend[]" *execution* of a sentence after it has been pronounced. Thus, even if a bail setting is regarded an order "suspending" the custody condition, such an order would be entirely permissible. No case suggests that there is a DUI exception to the absolute right to postconviction bail in misdemeanor cases. On the contrary: *O'Driscoll* involved a DUI conviction, and it held that the defendant was entitled to bail pending appeal. (*O'Driscoll*, pp. 1357–1358; see also Veh. Code, former § 23206 [version of § 23600 in effect when *O'Driscoll* was decided].)[4]

Enriquez had an absolute right to bail pending appeal. Since the trial court had no legal basis for denying his request, this Court should grant a stay

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[4] The fact that Enriquez was eligible for the Sheriff's Work Alternative program does not affect his right to bail. Enriquez was sentenced to ten days in custody, and thus was subject to a "judgment imposing imprisonment." (AE 80:24–81:3, 90; Pen. Code, § 1272, subd. (b).) The SWAP program is simply another way of serving a jail sentence. (See Pen. Code, § 4024.2.)

of his custody condition. (Cal. Rules of Court, rule 8.854(b) [authorizing stay where trial court "unjustifiably denied" the application].) Alternatively, this Court should admit Enriquez to bail in the amount of $50, or a similar nominal sum that reflects his extremely limited income, significant financial obligations, and lack of previous criminal history. (See AE 75:24–76:27.) Enriquez would be irreparably harmed absent a stay: even if he obtains a reversal on appeal, he would already have served his SWAP sentence, and could never get that time or lost wages back.

II. This Court should stay the custody condition and fines and fees because Enriquez's case raises the same speedy-trial claim that is presently before the Court of Appeal

A stay should be granted for a second, independent reason. Like many other misdemeanor cases, Enriquez's case was repeatedly delayed past its statutory deadline in late 2023. The Court of Appeal is presently considering whether these mass continuances violated defendants' rights to a speedy trial. (*Leibrand v. Superior Court*, no. A170134; *Mendoza v. Superior Court*, no. A170135; *Bauer v. Superior Court*, no. A170163; *Bonner v. Superior Court*, no. A170183.) So far, this Court has issued more than fifty stays in affected misdemeanor cases while it awaits the Court of Appeal's decision. Enriquez's sentence should likewise be stayed, since he will otherwise be forced to serve a sentence that may soon turn out to have been invalidly imposed.

As the District Attorney has conceded in *Leibrand*, *Mendoza* and *Bonner*, a violation of a misdemeanor defendant's statutory speedy trial right is a prejudicial error which can be raised on appeal. (See *People v. Wilson* (1963) 60 Cal.2d 139, 153 fn. 5; *People v. Davisbragdon* (2023) 94 Cal.App.5th Supp. 1, 8–9.) Although other defendants filed writ petitions after their

speedy trial motions were denied, Enriquez was not able to do so because the trial court delayed ruling on his motion to dismiss for months, only denying it on the very day that he was assigned out to trial. It would be unfair to penalize Enriquez for a delay that he was not responsible for. Like all other misdemeanor defendants whose cases are affected by the pending speedy trial litigation, his case should be stayed to avoid the irreparable harm of a sentence imposed after a time-barred trial.

The trial court had discretion to stay conditions of probation. (See *In re Bakke* (1986) 42 Cal.3d 84, 88.) It declined to do so in part because it believed it was bound to follow the Court of Appeal's decision in *Estrada v. Superior Court*, no. A166474. (AE 72:27–73:11.) But that decision was ordered depublished by the Supreme Court. The trial court thus acted "unjustifiably" in treating *Estrada* as binding. (Cal. Rules of Court, rule 8.854(b).) It failed to articulate any other reason for approaching Enriquez's case differently from the dozens of other misdemeanor cases which have been stayed pending the Court of Appeal's decision. Moreover, a stay of the jail sentence and fines and fees would not affect public safety, since Enriquez would still be obliged to enroll in and complete the three-month first offender program, attend the Mothers Against Drunk Driving Impact panel, and obey all other conditions of probation.

III. This Court should issue interim relief

Enriquez filed this application immediately after receiving the transcript of the sentencing hearing. He regrets the fact that only a few days remain before his scheduled SWAP surrender date of July 1, 2024. If the Court is not able to issue an order within that time, he respectfully requests that it issue interim relief, and order that he need not begin serving his

custodial sentence while the Court is considering this application. (See Cal. Rules of Court, rule 8.854(d).)

IV. Conclusion

For these reasons, the Court should stay execution of the probation condition requiring him to serve ten days in custody through the Sheriff's Work Alternative Program and pay $610 in fines and fees, and in the alternative, should admit him to bail pending appeal. The Court should also grant interim relief staying the custody condition pending the Court's ruling on this application.

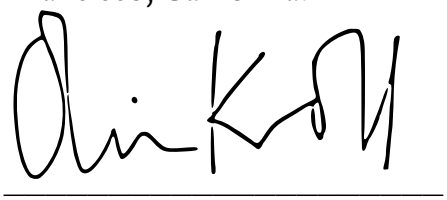
Respectfully submitted,

Oliver Kroll
Attorney for Defendant

WORD COUNT CERTIFICATE

I certify that the attached application contains 1,897 words, not including the caption, proposed orders, and this certificate.

Executed on June 26, 2024, at San Francisco, California.



Oliver Kroll

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant*.	No. APP-24-8800 Superior Court No. 22014337

[PROPOSED] ORDER GRANTING INTERIM RELIEF

Before the Court is Appellant Andrew Enriquez's Application for a Stay of Execution of Custody Condition, Fines and Fees and for Bail Pending Appeal. Pending its ruling on the application, the Court **GRANTS** interim relief as follows:

The condition of Defendant's probation requiring him to serve 10 days in custody through the Sheriff's Work Alternative Program ("SWAP") is **STAYED** pending the Court's ruling. During this stay, Defendant is temporarily relieved of the obligation to report to SWAP or to serve the custody condition, and the Sheriff is directed not to seek or issue a warrant for non-attendance at SWAP.

IT IS SO ORDERED.

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant*.	No. APP-24-8800 Superior Court No. 22014337

[PROPOSED] ORDER STAYING EXECUTION OF CUSTODY CONDITION, FINES AND FEES

Before the Court is Appellant Andrew Enriquez's Application for a Stay of Execution of Custody Condition, Fines and Fees and for Bail Pending Appeal. The Court is aware that the Court of Appeal is presently considering four writ petitions which assert similar claims to the ones raised in his motion to dismiss below. (*Leibrand v. Superior Court*, no. A170134; *Mendoza v. Superior Court*, no. A170135; *Bauer v. Superior Court*, no. A170163; *Bonner v. Superior Court*, no. A170183.) It also appears that the trial court failed to afford Defendant his statutory right to bail pending appeal in a misdemeanor case. (Pen. Code, § 1272, subd. (b).) The Court therefore **GRANTS** Defendant's application for a stay of execution.

1. The condition of Defendant's probation requiring him to serve 10 days in custody through the Sheriff's Work Alternative Program ("SWAP") is **STAYED** until further order of the Court. During this stay, Defendant is temporarily relieved of the obligation to report to SWAP or to serve the

custody condition, and the Sheriff is directed not to seek or issue a warrant for non-attendance at SWAP.

2. The condition of Defendant's probation requiring him to pay $610 in fines and fees is **STAYED** until further order of the Court. During this stay, Defendant is temporarily relieved of the obligation to make payments pursuant to any payment plan, and the trial court is directed not to impose interest, fees, or other sanctions for non-payment.

IT IS SO ORDERED.

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant*.	No. APP-24-8800 Superior Court No. 22014337

PROOF OF SERVICE OF APPLICATION FOR STAY OF EXECUTION OF CUSTODY CONDITION, FINES AND FEES AND FOR BAIL PENDING APPEAL

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Attorneys for Petitioner

I, Oliver Kroll, declare:

I am over eighteen years of age and not a party to this action. My business address is 555 Seventh St, San Francisco, CA 94103.

On June 26, 2024, I served the **Application for Stay of Execution of Custody Condition, Fines and Fees and for Bail Pending Appeal** and the supporting exhibits electronically on:

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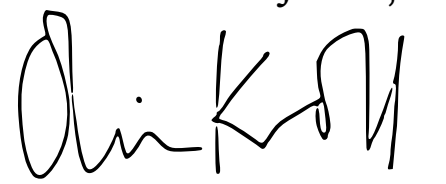
I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on June 26, 2024, at San Francisco, California.



Oliver Kroll